

Amendment No. 4 to HB2592

Boyd
Signature of Sponsor

AMEND Senate Bill No. 2102*

House Bill No. 2592

by deleting § 7-70-102(a) in Section 1 and substituting:

(a)

(1) Notwithstanding another law to the contrary, and except as provided by subdivision (a)(2) and § 7-70-107:

(A) If an electric utility provides services outside the corporate limits of the home municipality but within the home county to not less than three thousand five hundred (3,500) customers and not more than one hundred thirty thousand (130,000) customers, then the home municipality must expand the utility board to include one (1) additional voting board member on the utility board for the home county, appointed by an incorporated city or town in accordance with § 7-70-103(a)(1), if the home county chooses to appoint a person pursuant to § 7-70-103(a)(1); and

(B) If an electric utility provides services outside the corporate limits of the home municipality but within the home county to more than one hundred thirty thousand (130,000) customers, then the home municipality must expand the utility board to include one (1) more additional voting board member on the utility board for the home county, appointed by an incorporated city or town in accordance with § 7-70-103(a)(2), if the home county chooses to appoint such persons pursuant to § 7-70-103(a)(2).

(2)

(A) If a utility board that would require expansion under subdivision

(a)(1)(A) or (B) includes:

(i) One (1) voting board member who is a resident of the home county and resides outside the corporate limits of the home municipality as of May 1, 2026, such board member satisfies the requirements of subdivision (a)(1)(A), regardless of how such board member is appointed; and

(ii) Not less than two (2) voting board members who are residents of the home county and reside outside the corporate limits of the home municipality as of May 1, 2026, such board members satisfy the requirements of subdivisions (a)(1)(A) and (B), regardless of how such board members are appointed.

(B) If a voting board member position described under subdivision

(a)(2)(A)(i) or (ii) ceases to exist, then the home municipality must comply with the requirements of subdivision (a)(1).

AND FURTHER AMEND by deleting "7-70-102(a)(1)" and substituting "7-70-102(a)(1)(A)" in § 7-70-103(a)(1) in Section 1.

AND FURTHER AMEND by deleting "7-70-102(a)(2)" and substituting "7-70-102(a)(1)(B)" in § 7-70-103(a)(2) in Section 1.